

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans + Judge Erin Rowe

Date: 08/12/2026

Court Room Rules and Notices

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#	Case Name	Tentative
1	Donaldson – Probate; 30-2023-01323260-PR-LA-CMC	Petitioner Darla Merritt’s unopposed Motion for an Order Compelling Eric Donaldson’s Responses to Inspection Demand, Set Three (ROA 224) is GRANTED. Eric Donaldson is ORDERED to provide verified written responses, without objection, to Inspection Demands 17-42 and to produce all documents responsive to each of the requests within 30 days of this order. Petitioner’s request for sanctions in connection with the motion is GRANTED in the amount of \$1,547.50 (2.5 hours at \$595 per hour plus the \$60 motion fee). Petitioner is directed to give notice.
2	Rayhan - Other Probate; 30-2024-01401950-PR-OP-CMC	<i>Rayhan – Other Probate (2024-01401950) Motions to Compel (4)</i> Petitioner Elaheh Rayhan’s Motions to Compel (ROAs 220, 221, 222, 223) filed on March 6, 2026 ARE CONTINUED to 09/09/26 at 9:00 AM in Dept CM08. In addition, Petitioner’s Motions to Compel (ROAs 230, 231, 232, 233) filed on March 6, 2026 and set for hearing on August 26, 2026 are ADVANCED to today’s date and CONTINUED to 09/23/26 at 9:00 AM in Dept CM08.

3	Hasan – Trust; 30-2022-01268695-PR-OP-CMC	<i>Hasan – Trust (2022-01268695)</i> Pre-trial Motions Petitioner Tariq S. Hasan’s motion for preservation of trust funds (ROA 434) is DENIED. Petitioner’s motion to adjudicate the issue of notice (ROA 442) is DENIED. Petitioner’s motion to allow and determine creditor’s claim (ROA 455) is DENIED. Petitioner’s motion for findings of breach of fiduciary duty (ROA 473) is DENIED. Petitioner’s Motion to Bifurcate and Sequence Consolidated Trial Proceedings (ROA 512) is DENIED. I. MOTIONS TO ADJUDICATE CONTESTED ISSUES By four separate motions (ROAs 434, 442, 455, and 473), Petitioner seeks to adjudicate contested factual and legal issues presented by the pleadings in this proceeding. Each motion is based on evidence presented through declarations and verified pleadings. “It has long been the rule that in probate matters ‘affidavits may not be used in evidence unless permitted by statute. [Citation.]’ [Citation.] Consequently, ‘when challenged in a lower court, affidavits and verified petitions may not be considered as evidence at a contested probate hearing. [Citations.]’” (<i>Estate of Bennett</i> (2008) 163 Cal.App.4th 1303, 1308–1309; see <i>Estate of Lensch</i> (2009) 177 Cal.App.4th 667, 675 [“This rule is consistent with the long-established rule of civil practice that “[a] party is entitled to have received in evidence and considered by the court, before findings are made, all competent, relevant and material evidence on any material issue””].) Not only do the motions improperly attempt to circumvent the parties’ right to an evidentiary hearing, they also seek adjudication of legal issues in violation of Code of Civil Procedure section 437c(t) which allows adjudication of a legal issue

	only when certain procedures are followed, including presentation of a stipulation by all parties impacted as to which issues will be presented by way of motion and a declaration from each stipulating party that the motion will further the interest of judicial economy. Further, any motion brought pursuant to section 437c(t) must comply with the requirements attendant to a summary adjudication motion, including submission of a separate statement of material facts, etc. Petitioners' motions do not comply with these requirements. The motions are procedurally defective and, on that ground, are DENIED. II. MOTION TO BIFURCATE Pursuant to Code of Civil Procedure sections 598 and 1048(b), Petitioner moves to bifurcate trial of the petitions and responses in this proceeding so the various pleadings would be tried as follows: (1) Petitioner's First Amended Petition (ROA 6), Petitioner's responses to other petitions, and various specified issues would be tried first; (2) Khalid Hasan, Rafat Subhan, Nusrat Hajar, and Saeeda Hasan's petition filed March 26, 2024 (ROA 222) and various specified issues would be tried second; and (3) Respondent Rafat Subhan's Petition for Instructions (ROA 21) and various specified issues would be tried third. (ROA 512 at 10:1-11:21.) Code of Civil Procedure section 598 reads, in pertinent part: "The court <i>may</i>, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order, no later than the close of pretrial conference in cases in which such pretrial conference is to be held, or, in other cases, no later than 30 days before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to
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		Sections 597 and 597.5. The court, on its own motion, may make such an order at any time.” (Emphasis added.) Code of Civil Procedure section 1048(b) reads: “The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, <i>may</i> order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.” (Emphasis added.) Though they utilize different methods, both sections allow the court to separate issues at trial to promote judicial economy and “avoid wasting court time.” (<i>Foreman & Clark Corp. v. Fallon</i> (1971) 3 Cal.3d 875, 888, fn. 8.) The determination of whether to bifurcate or sever claims is entrusted to the court’s broad discretion. (<i>Grappo v. Coventry Financial Corp.</i> (1991) 235 Cal.App.3d 496, 504; <i>Pilliod v. Monsanto Co.</i> (2021) 67 Cal.App.5th 591, 625–626.) Based on the record before the court, the requested bifurcation would not promote judicial economy. Accordingly, the motion is denied. Respondent Rafat Subhan is directed to give notice.
4	Rhodes – Trust; 30-2025-01527303-PR-TR-CMC	<i>Rhodes – Trust (2025-01527303)</i> Motion to Suspend; Motion to Appoint Eugene S. Rhodes’ Motion to Appoint Interim Professional Private Fiduciary to Replace Existing Co-Trustees (ROA 12) is GRANTED in part as set forth below. Paul M. Rhodes’ Motion for Suspension of Co-trustee Eugene S. Rhodes and Other Relief,

	Including Appointment of Independent Trust Company (ROA 54) is GRANTED in part as set forth below. As explained below, the hearing on these motions is continued to 9:00 a.m. on August 26, 2026 in CM08. Eugene S. Rhodes (Eugene)¹ and Paul M. Rhodes (Paul) are co-trustees of the Marjorie S. Rhodes Trust dated September 1, 1964 (Trust). The Trust provides no guidance on whether the co-trustees must operate by unanimous consent or individually. Accordingly, the co-trustees can only act by unanimous consent. (Prob. Code, § 15620 [“Unless otherwise provided in the trust instrument, a power vested in two or more trustees may only be exercised by their unanimous action”].) This proceeding was initiated in November 2025 by Eugene’s petition for instructions and other relief under Probate Code section 1722 (ROA 2). In May of 2026, Paul also filed a petition, seeking to suspend Eugene as co-trustee (ROA 54). The details of the creation and history of the Trust are not necessary to this order. Neither are the various allegations and accusations made by the co-trustees against each other. Suffice it to say that, at this point, there is both hostility and lack of cooperation between Paul and Eugene as co-trustees of the Trust. (Declaration of Eugene Rhodes (ROA 13) at ¶ 15 (5:6-7); Declaration of Paul M. Rhodes (ROA 32) at ¶ 19 (4:17-22).) By the motions before the court this day, Eugene seeks an order removing himself and Paul as co-trustees of the Trust and appointing a private licensed professional fiduciary in their place while Paul seeks an order suspending only Eugene as co-trustee of the Trust and appointing Peninsula Bay Trust Company in his place. The court has authority to suspend a trustee and to appoint an interim trustee pending resolution of a petition brought under Probate Code section 17200. (Prob. Code, §§ 15642(e), 17206.) That authority is discretionary. (<i>Schwartz v. Labow</i> (2008) 164 Cal.App.4th 417, 429-430.) A trial
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¹ Because the parties share a last name, the court refers to them by their first names. No disrespect is intended.

	court has broad discretion in determining whether to remove a trustee based on one of these statutory grounds. (<i>Estate of Gilmaker</i> (1962) 57 Cal.2d 627, 633 [“The removal and substitution of a trustee is largely within the discretion of the trial court”].) A trustee may be removed “[w]here hostility or lack of cooperation among cotrustees impairs the administration of the trust.” (Prob. Code, § 15642(b)(3).) The only things the moving parties agree on are: (1) there is both a lack of cooperation and hostility between them; and (2) administration of the Trust has been impaired. Accordingly, the court suspends both Paul and Eugene as co-trustees of the Trust. The suspension will be effective at 5:00 p.m. on August 26, 2026. The delay is to allow the court to appoint an interim trustee pursuant to the following procedure. Eugene and Paul are each ordered to file and serve three suggested private professional fiduciaries (those names may but are not required to include the private professional fiduciaries already suggested in the current motions) at 11:00 a.m. on Monday, August 17, 2026. Each party may, but is not required to, strike one name from the other party’s list. If a party elects to strike a name, they must file and serve a notice identifying the stricken name at 11:00 a.m. on Wednesday, August 19, 2026. The hearing on these motions is continued to August 26, 2026 at 9:00 a.m. in CM08. At that hearing, the court will notify the parties of its selection for interim trustee. Subject to two exceptions addressed in the following sentences, the court makes no ruling on the various objections filed in connection with these motions (ROAs 75, 101, 116, 120, & 127) because the evidence objected to is not material to the court’s disposition of the motions. The two exceptions are Paul’s objection to ¶ 15 of Eugene’s initial declaration and Eugene’s objection to ¶ 19 of Paul’s initial declaration (the paragraphs establishing hostility and lack of cooperation). The court overrules the objections to those paragraphs and considers the paragraphs only for the purpose of demonstrating the state of mind of the declarants. Eugene’s Request for Judicial Notice (ROA 70) is DENIED as the offered documents are not material to the court’s disposition of the motions.
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		The court will give notice.
5	Rhodes Jr – Trust; 30-2025-01527303-PR-TR-CMC	<i>Rhodes Jr. – Trust (2025-01527301)</i> Motion to Suspend; Motion to Appoint Eugene S. Rhodes’ Motion to Appoint Interim Professional Private Fiduciary to Replace Existing Co-Trustees (ROA 12) is GRANTED in part as set forth below. Paul M. Rhodes’ Motion for Suspension of Co-trustee Eugene S. Rhodes and Other Relief, Including Appointment of Independent Trust Company (ROA 54) is GRANTED in part as set forth below. As explained below, the hearing on these motions is continued to 9:00 a.m. on August 26, 2026 in CM08. Eugene S. Rhodes (Eugene)² and Paul M. Rhodes (Paul) are co-trustees of the Frank A Rhodes, Jr. Separate Property Trust dated July 14, 1998 (Trust). Pursuant to the terms of the Trust, the co-trustees may only operate by unanimous consent (ROA 2, Exhibit C at § 10.10.2). This proceeding was initiated in November 2025 by Eugene’s petition for instructions and other relief under Probate Code section 1722 (ROA 2). In March of 2026, Paul also filed a petition, seeking to remove Eugene as co-trustee (ROA 17). The details of the creation and history of the Trust are not necessary to this order. Neither are the various allegations and accusations made by the co-trustees against each other. Suffice it to say that, at this point, there is both hostility and a lack of cooperation between Paul and Eugene as co-trustees of the Trust. (Declaration of Eugene Rhodes (ROA 13) at ¶ 16 (6:1-6); Declaration of Paul M. Rhodes (ROA 32) at ¶ 19 (4:17-22).)

² Because the parties share a last name, the court refers to them by their first names. No disrespect is intended.

	By the motions before the court this day, Eugene seeks an order removing himself and Paul as co-trustees of the Trust and appointing a private licensed professional fiduciary as trustee while Paul seeks an order suspending only Eugene as co-trustee of the Trust and appointing Peninsula Bay Trust Company in his place. The court has authority to suspend a trustee and to appoint an interim trustee pending resolution of a petition brought under Probate Code section 17200. (Prob. Code, §§ 15642(e), 17206.) That authority is discretionary. (<i>Schwartz v. Labow</i> (2008) 164 Cal.App.4th 417, 429-430.) A trial court has broad discretion in determining whether to remove a trustee based on one of these statutory grounds. (<i>Estate of Gilmaker</i> (1962) 57 Cal.2d 627, 633 [“The removal and substitution of a trustee is largely within the discretion of the trial court”].) A trustee may be removed “[w]here hostility or lack of cooperation among cotrustees impairs the administration of the trust.” (Prob. Code, § 15642(b)(3).) The only things the moving parties agree on are: (1) there is both a lack of cooperation and hostility between them; and (2) administration of the Trust has been impaired. Accordingly, the court suspends Paul and Eugene as co-trustees of the Trust. The suspension will be effective at 5:00 p.m. on August 26, 2026. The delay is to allow the court to appoint an interim trustee pursuant to the following procedure. Eugene and Paul are each ordered to file and serve three suggested private professional fiduciaries (those names may but are not required to include the private professional fiduciaries already suggested in the current motions) at 11:00 a.m. on Monday, August 17, 2026. Each party may, but is not required to, strike one name from the other party’s list. If a party elects to strike a name, they must file and serve a notice identifying the stricken name at 11:00 a.m. on Wednesday, August 19, 2026. The hearing on these motions is continued to August 26, 2026 at 9:00 a.m. in CM08. At that hearing, the court will notify the parties of its selection for interim trustee. Subject to two exceptions addressed in the following sentences, the court makes no ruling on the various objections filed in connection with these motions (ROAs 91, 99, 108, 114, & 119)
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		because the evidence objected to is not material to the court's disposition of the motions. The two exceptions are Paul's objection to ¶ 16 of Eugene's initial declaration and Eugene's objection to ¶ 19 of Paul's initial declaration (the paragraphs establishing hostility and lack of cooperation). The court overrules the objections to those paragraphs, which the court considers only for the purpose of demonstrating the state of mind of the declarants. Eugene's Request for Judicial Notice (ROA 71) is DENIED as the offered documents are not material to the court's disposition of the motions. The court will give notice.
6	Quezada – Probate; 30-2024-01393204-PR-PW-CMC	<i>Quezada – Probate (2024-01393204)</i> Motion to Approve Settlement Petitioner Jose Quezada's Motion for Order Approving Settlement Agreement (ROA 50) is GRANTED. Petitioner seeks an order approving a settlement agreement entered into by and among Jose Quezada, Ricardo Ramos Quezada, Juan Carlos Quezada relating to the estate of Socorro Ramos Quezada. The probate court has jurisdiction over estate administration. (Prob. Code, § 7050.) And it has the power to approve the executor's settlement of a claim against the estate. (Prob. Code § 9830 et seq.) The parties to the settlement are the only heirs. They all agreed to the terms and have all been given notice of the motion to approve the settlement. No opposition or objection was filed. Accordingly, the motion is GRANTED. Petitioner is directed to give notice.

7	Benford – Conservatorship; 30-2024-01394079-PR-CP-CMC	<i>Benford – Conservatorship (2024-01394079)</i> Motion to Compel The hearing on Petitioner James Nelson Benford’s Motion to Compel Initial Responses to Form Interrogatories, Special Interrogatories, and Requests for Production (ROA 338) is CONTINUED to September 16, 2026 at 9:00 a.m. in Department CM08. The motion seeks to compel initial responses to three sets of discovery. However, the subject discovery was not submitted in connection with the motion. The hearing on the motion is continued to allow Petitioner to submit the subject discovery in support of the motion. Petitioner is directed to give notice.